

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
TAMEER PEAK,

Plaintiff,

-against-

THE CITY OF NEW YORK and
NYPD OFFICER JAMES MORGANTE,

Defendants.
----- X

Plaintiff designates New York County
as the place of trial

Basis of venue is
county of occurrence

SUMMONS

To the above-named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
October 7, 2022

SIVIN, MILLER & ROCHE, LLP

By Edward Sivin
Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

The City of New York: c/o NYC Corp. Counsel, 100 Church St., New York, NY 10007

NYPD Officer James Morgante: c/o NYPD Strategic Response Group 3, 397 Coney Island Avenue, Brooklyn, NY 11218

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

TAMEER PEAK,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK and
NYPD OFFICER JAMES MORGANTE,

Defendants.

----- X

Plaintiff, by his attorneys SIVIN, MILLER & ROCHE, LLP, as and for his
complaint herein, alleges as follows, upon information and belief:

THE DEFENDANTS

1. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
2. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the “NYPD”).
3. That at all times herein mentioned, defendant NYPD Officer James Morgante (Morgante) was and is a police officer employed by the NYPD.
4. That at all times herein mentioned, Morgante was acting within the course and scope of his employment with the NYPD.
5. That at all times herein mentioned, Morgante was acting under color of state law.

THE FACTS

6. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

7. That on or about January 18, 2021, plaintiff was lawfully attending a protest at City Hall Park, located at or near Chambers Street and Centre Street, in New York, NY.

8. That while plaintiff was lawfully attending the aforementioned protest, he was forcibly seized and assaulted and battered by Morgante, without any legal justification.

9. That the assault and battery included, but was not limited to, punching plaintiff in the head and kicking plaintiff in the head.

10. That following his unlawful seizure of plaintiff, Morgante arrested plaintiff without a warrant and without probable cause to believe that plaintiff had committed or was about to commit any crime.

11. That after arresting plaintiff, Morgante imprisoned plaintiff against his will at various locations, including a police van and a police precinct.

12. That thereafter, Morgante initiated a prosecution of plaintiff by charging plaintiff with crimes of which he was innocent and of which Morgante did not have probable cause to believe plaintiff was guilty.

13. That in support of the prosecution, Morgante authored and signed a Criminal Court Complaint in which he falsely charged plaintiff with various crimes and intentionally made statements and accusations against plaintiff that he knew were false.

14. That in further support of the prosecution of plaintiff, Morgante made statements about plaintiff to fellow officers and to the District Attorney that Morgante knew to be false.

15. That among the knowingly false statements that Morgante made were that a) plaintiff refused to disperse from an active roadway; b) plaintiff was standing in a street blocking vehicular traffic; c) plaintiff put his body weight against Morgante; d) Plaintiff grabbed Morgante's baton and refused to let go; and e) plaintiff interfered with police action.

16. That these false statements made by Morgante constituted material evidence in the prosecution of plaintiff, and evidence that would likely convince a judge and/or jury that plaintiff was guilty of the crimes with which he was charged.

17. That these false statements made by Morgante caused plaintiff to be deprived of his liberty, in that plaintiff was required to appear in court on multiple occasions to answer the charges against him and was restricted in his travel.

18. That the actions of Morgante were intentional and malicious in nature.

19. That on or about March 3, 2022, after being prosecuted for over one year, all criminal charges against plaintiff were dismissed on the merits and the criminal prosecution terminated favorably to plaintiff.

20. That as a result of the actions of Morgante, plaintiff suffered significant emotional and physical injuries, including but not limited to a concussion, and incurred medical and other expenses, endured and will continue to endure pain and suffering and loss of enjoyment of life, and has been otherwise damaged.

FIRST CAUSE OF ACTION AGAINST MORGANTE
(42 USC § 1983 Claim Arising from Fourth & Fourteenth Amendment Violations)

21. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

22. That the aforementioned actions of Morgante in assaulting and battering,

falsely arresting and imprisoning, and maliciously prosecuting plaintiff constituted illegal seizures of plaintiff, in violation of rights guaranteed to plaintiff under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

SECOND CAUSE OF ACTION AGAINST MORGANTE
(42 USC § 1983 Claim Based on Denial of Right to Fair Trial)

23. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

24. That the aforesaid actions by Morgante constitute a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

THIRD CAUSE OF ACTION AGAINST THE CITY
(Monell Claim)

25. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

26. That the aforesaid actions by Morgante were consistent with and a direct result of an unconstitutional pattern and practice of the NYPD of assaulting and battering, falsely arresting and imprisoning, and maliciously prosecuting lawful protestors without probable cause, and entitle plaintiff to recover damages from the City under 42 U.S.C. § 1983 and pursuant to *Monell v. Dep't of Social Servs. Of N.Y.C.*, 436 U.S. 658.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this

matter, and for punitive damages against Morgante, and attorney's fees against both defendants pursuant to 42 U.S.C. § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
October 7, 2022

Yours, etc.
SIVIN, MILLER & ROCHE, LLP

By *Edward Sivin*
Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
October 7, 2022

Edward Sivin

EDWARD SIVIN